

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331 of the Code of Criminal
Procedure Act No.15 of 1979

Court of Appeal No:
CA/HCC/0075/2024
High Court of Kalutara
Case No: HC/106/2008

Matara Arachchige Sumith Chandana

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **Saliya Keerthinayake with Rasika**
Sanjay Silva for the Appellant.
Sudharshana De Silva, PC, ASG for the
Respondent.

ARGUED ON : **20/07/2026**

DECIDED ON : **16/09/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Accused-Appellant (hereinafter referred to as the Appellant) was indicted by the Attorney General for committing the murder of Paramullage Gilbert Peiris on or about 09/08/2004, an offence punishable under Section 296 of Penal Code.

After a non-jury trial, the Learned Trial Judge convicted the Appellant on the count of murder and sentenced him to death on 16/11/2023.

Being aggrieved by the aforesaid conviction and sentence, the Appellant preferred this appeal to this court seeking to set aside the conviction and sentence imposed on him.

The Learned Counsel for the Appellant informed this court that the Appellant has given consent to argue this matter in his absence. During the argument he was connected via the Zoom platform from prison.

On behalf of the Appellant the following Grounds of Appeal are raised:

1. The Learned High Court Judge has failed to consider whether the evidence led by the Prosecution established the credibility of the dying declaration allegedly made by the deceased.

2. The Learned High Court Judge has compartmentalised the evidence and has failed to consider the same in totality.

Background of the case

On the day of the incident, at about 6.10 am, PW2 Sampath Priyankara, who is a relation of the deceased, heard someone shouting and ran towards that direction. The deceased was lying fallen on the road with bleeding injuries. When PW2 had then inquired from the deceased about what had happened, the deceased had told him that the Appellant had stabbed him. According to PW2, the deceased had uttered the words “Chandana stabbed” with difficulty. The deceased was then rushed to the hospital. However, he had succumbed to his injuries upon admission. The deceased is the maternal uncle of PW2. PW2 had informed PW1 about what the deceased had told him. Further, PW2 knew the Appellant, who had also lived in the village. The deceased was not on good terms with the Appellant.

PW1 had admitted that he came to know about the incident from PW2.

The Appellant was arrested 10 days after the incident, on 19.08.2004. A sickle was recovered upon the statement of the Appellant. As some blood marks were noted on the sickle, it was sent to the Government Analyst for analysis. According to the Government Analyst Report which was marked as P5, human blood was identified on the sickle. The sickle was marked as P2.

During the investigation, officers from the Police Kennel Division were summoned and kennel dog Tiger had picked up a scent from the seat of the abandoned push bicycle at the scene and had then gone to a nearby house. Investigations revealed that the house belonged to the Appellant.

PW10 JMO Sunil Kumara, who had conducted the post-mortem examination, stated that there were 14 injuries on the deceased's body. Out of the 14 injuries, 09 injuries were noted as abrasions. There were 04 cut

injuries and one stab injury to the neck which damaged the major blood vessels. According to the JMO, the injuries were consistent with having being caused by a sharp cutting pointed weapon. The JMO opined that the cut injuries and stab injury could have been caused by P2.

As there was a case to be answered, the Learned High Court Judge had called for the defence and the Appellant had made a dock statement and denied the charge.

In the first ground of Appeal, the Learned Counsel contended that the Learned Trial Judge has failed to consider whether the evidence led by the prosecution established the credibility of the dying declaration allegedly made by the deceased.

As this case solely relies on the dying declaration made by the deceased, it is very important to discuss the relevant laws pertaining to the acceptance of dying declarations as evidence in criminal trials under our law.

According to Section 32 of the Evidence Ordinance,

Statements, written or verbal, of relevant facts made by a person who is dead, or who cannot be found, or who has become incapable of giving evidence, or whose attendance cannot be procured without an amount of delay or expense which, under the circumstances of the case, appears to the court unreasonable, are themselves relevant facts in the following cases: -

- (1) when the statement is made by a person as to the cause of his death, or as to any of the circumstances of the transaction which resulted in his death, in cases in which the cause of that person's death comes into question.

Such statements are relevant whether the person who made them was or was not, at the time when they were made, under expectation of death,

and whatever may be the nature of the proceedings in which the cause of his death comes into question.

The following requirements must necessarily be established before any evidence is led under section 32(1) of the Evidence Ordinance.

1. That the maker of the statement is dead.
2. That the statement made by the deceased refers to his/her cause of death or to the circumstances of the transaction which resulted in his/her death.

Hence such evidence would become admissible only where the cause of death of the person making the statement is in question in the particular judicial proceedings. Admissibility of such evidence would ultimately be decided by the trial judge as per Section 136 of the Evidence Ordinance.

In **Dharmawansa Silva and Another v. The Republic of Sri Lanka** [1981] 2 Sri.L.R.439 it was held:

“When a dying statement is produced, three questions arise for the Court. Firstly, whether it is authentic. Secondly if it is authentic whether it is admissible in whole or part. Thirdly, the value of the whole or part that is admitted. A dying deposition is not inferior evidence but it is wrong to give it added sanctity”

In **Sigera v Attorney General** [2011] 1 Sri.L.R. 201 it was held that:

“An accused can be convicted of murder based mainly and solely on a dying declaration made by a deceased without corroborating under certain circumstances. It would not be repugnant or obnoxious to the law to convict an accused based solely on a dying declaration.”.

The learned Counsel for the Appellant contended that the Learned High Court Judge had only relied on the dying declaration of the deceased which is not corroborated by any other evidence. The learned Counsel contended that it was noticed by PW16 that Kumudu Kanthi, who was named as PW6, had witnessed the incident, however, was not called by the prosecution.

In this case, PW2 had given very cogent and reliable evidence about the perpetrator of the murder. After the deceased had told PW2 that Chandana had stabbed him, he had talked about this to PW1 first and then to the police. His evidence was not contradicted by the defence. Hence, relying on this evidence has not caused any prejudice to the Appellant.

According to Section 134 of the Evidence Ordinance, there is no required number or minimum number of witnesses required to prove any fact. It must be remembered that Courts make decisions based on the quality of the evidence, not the quantity. As such, even a single witness, if credible, can support a conviction.

In the case of **Sumanasena v. Attorney-General** (1999) 3 SLR 137 it was held:

“In our law of evidence, the salutary principle is enunciated that evidence must not be counted, but weighed and the evidence of a single solitary witness if cogent and impressive could be acted upon by a Court of law. Section 134 of the Evidence Ordinance sets out that "no particular number of witnesses shall in any case be required for the proof of any fact". In an Indian case the conviction for murder was affirmed on the mere circumstantial evidence given by a solitary witness and a pointed reference was made to the principle which we have adumbrated above vide Mulluwa v. The State of Maddhya Pradesh.”

In the case of **Wijepala v. The Attorney-General** (2001) 1 SLR it was held:

“Section 134 of the Evidence Ordinance lays down a specific rule that no particular number of witnesses shall in any case be required for the proof of any fact, thus attaching more importance to the quality of evidence rather than the quantity. The evidence of a single witness, if cogent and impressive, can be acted upon by a Court, but, whenever there are circumstances of suspicion in the testimony of such a witness or is challenged by the cross-examination or otherwise, then corroboration may be necessary. The established rule of practice in such circumstances is to look for corroboration in material particulars by reliable testimony, direct or circumstantial.”

Further, calling witnesses is entirely on the prerogative of the prosecution and this is not exhaustive, as the defence also can call their witnesses.

In **Damith Perera v Attorney General** [2019] V1-SRI-LR-488 the court held that:

“1. It is the prerogative of the prosecution to decide on the witnesses they call. The court will only interfere if the prosecutor has gone wrong in principle.

2. If the prosecution fails to call a witness listed in the indictment, there is an obligation on the part of the prosecution to facilitate the defence calling such witness, if so requested. However, the defence has not made an application to that effect and therefore no prejudice had been caused to the appellant by the prosecution not calling a particular witness.”

In the case of **King v. Chalo Singho** 43 NLR 269 it was held:

“at the same time, they cannot, speaking generally, approve of the idea that a prosecutor must call witnesses irrespective of considerations of number and of reliability, or that a prosecutor ought to discharge the functions both of prosecution and defence.

... It must, therefore, be regarded as well-established now, that a prosecutor is not bound to call all the witnesses on the indictment, or to tender them for cross-examination. That is a matter in his discretion, but in exceptional circumstances, a Judge might interfere to ask him to call a witness, or to call a witness as a witness of the Court.”

In the second ground of appeal, the learned Counsel contended that the Learned High Court Judge has compartmentalised the evidence and has failed to consider the same in totality.

In this case, the Learned High Court had considered all the evidence presented before him to come to his decision. He had not compartmentalised the evidence at any point in order to come to his decision.

The Learned High Court Judge had considered the dying declaration of the deceased, the recovery under Section 27 of the Evidence Ordinance, the subsequent conduct of the Appellant and the evidence presented by the defence to come to his decision. Therefore, it is incorrect to say that the Learned High Court Judge had not considered all the evidence presented in this case.

Considering the evidence presented against the Appellant, I conclude that the prosecution had succeeded in adducing highly incriminating evidence against the Appellant and thereby established the charge beyond reasonable doubt. As such I conclude that this is not an appropriate case in which to

interfere with the findings of the Learned High Court Judge of Kalutara dated 16/11/2023.

Hence, I dismiss the Appeal.

The Registrar is directed to send this judgment to the High Court of Kalutara along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree

JUDGE OF THE COURT OF APPEAL